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Jane Doe v. Polytechnic School, et al.

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Defendants Polytechnic School and Meredith Robbins

RESPONDING PARTY(S): Plaintiff Jane Doe

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Jane Doe (Plaintiff) filed this complaint against defendants Polytechnic School and Meredith Robbins (collectively, Defendants) arising from an employment relationship. Plaintiffs assert causes of action for: (1) discrimination in violation of the FEHA; (2) hostile work environment harassment in violation of the FEHA; (3) retaliation in violation of the FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) negligent hiring, supervision, and retention; (6) intentional infliction of emotional distress; (7) wrongful constructive termination of employment in violation of public policy; (8) whistleblower retaliation (Labor Code §1102.5 et seq.); and (9) violation of Labor Code § 2802.

Defendants now move to compel Plaintiff to arbitrate this dispute. Plaintiff opposed.

TENTATIVE RULING:

Defendants' Motion to Compel Arbitration is DENIED.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Motion to Compel Arbitration

I. Documents Filed Under Seal

As an initial matter, this motion and opposition, were filed redacted without filing a motion or application to seal. (See Rules of Court, rule 2.551.) In other words, no party filed an application to have the documents remain under seal, after they were filed “conditionally under seal.” The Court deems any documents filed or lodged no longer sealed. They shall be unredacted in the public record, absent a conflicting court order.

II. Legal Standard

“[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284). “In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Ass’n v. State (2006) 142 Cal.App.4th 198, 205.)

“[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.)

“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . .” (Code Civ. Pro. §1281.4.)

III. Analysis

California has a strong public policy in favor of arbitration as an expeditious and cost-effective way of resolving disputes. “Even so, parties can only be compelled to arbitrate when they have agreed to do so.” (Avila v. S. California Specialty Care, Inc. (2018) 20 Cal. App. 5th 835, 843.) “The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement.” (Ibid.)

An arbitration agreement is a contractual agreement. “General contract law principles include that ‘[t]he basic goal of contract interpretation is to give effect to the parties’ mutual intent at the time of contracting. [Citations.] ... The words of a contract are to be understood in their ordinary and popular sense.” [Citations.] (Garcia v. Expert Staffing W., 73 Cal. App. 5th 408, 412–13.)

A. The FAA Applies

Defendants move to compel arbitration of this action. The FAA provides for enforcement of arbitration provisions in any contract “evidencing a transaction involving commerce.” (9 USC § 2.) The term “involving commerce” is functionally equivalent to “affecting commerce” and “signals an intent to exercise Congress’ commerce power to the full.” (Allied-Bruce Terminix Cos., Inc. v. Dobson (1995) 513 US 265, 277.) “The party asserting the FAA bears the burden to show it applies by presenting evidence establishing [that] the contract with the arbitration provision has a substantial relationship to interstate commerce” (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 238.)

Here, the Arbitration Agreement states “Applicable Law. This Arbitration Agreement shall be governed by federal law pursuant to the Federal Arbitration Act (“FAA”).” (Dwyer Decl., ¶ 8, Ex. B.) Therefore, the FAA applies. (Davis v. Shiekh Shoes, LLC (2022) 84 Cal.App.5th 956, 963 [finding the FAA applies “if it is so stated in the agreement.”].)

B. Existence of An Arbitration Agreement

a. Defendants' Initial Burden

Defendants have the initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal. App. 5th 158, 165.) “[I]t is not necessary to follow the normal procedures of document authentication.” (Condee v. Longwood Mgmt. Corp. (2001) 88 Cal.App.4th 215, 218.)

The Declaration of Sean Dwyer, Director of Human Resources and Risk Management at Polytechnic School states: “On April 10, 2023, as part of her on boarding process, she electronically signed a letter of agreement outlining the terms and conditions of her employment (“letter of agreement”) and an arbitration agreement. On or around February 29, 2024, Poly provided Plaintiff with another letter of agreement and another arbitration agreement which Plaintiff electronically signed on June 6, 2024.” (Dwyer Decl. ¶6.)

In relevant part, the 2024 Arbitration Agreement (Agreement) provides that:

To the fullest extent permitted by law, all disputes between Employee (including Employee’s attorneys, family members, successors, and assigns) and Employer (including Employer’s current and former families, affiliates, directors, officers, supervisors, managers, employees, agents, successors, attorneys, and assigns) relating to or arising from in any manner whatsoever the employment or termination of Employee, including, without limitation, all disputes arising under this Agreement, (“Arbitrable Claims”) shall be resolved by binding arbitration under the FAA before a single neutral arbitrator.

(Dwyer Decl., ¶ 8, Ex. B.)

Defendants have therefore met their initial burden.

b. Plaintiff's Burden

This switches the burden to Plaintiff, who “bears the burden of producing evidence to challenge the authenticity of the agreement.” (Gamboa, supra, 72 Cal.App.5th at p. 165.) In opposition, Plaintiff does not challenge that she signed the Agreement or that the Agreement generally covers the claims here. Instead, Plaintiff puts forth various defenses to enforcement.

The Court now turns to Plaintiff’s defenses to enforcement.

C. Defenses to Enforcement

Plaintiff makes two arguments against enforcement. First, the Agreement is unenforceable pursuant to the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA) and because the Agreement is unconscionable.

Here, the EFAA renders the Agreement invalid and unenforceable.

a. The EFAA Applies

In opposition, Plaintiff argues that arbitration is precluded by operation of the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021. (See 9 U.S.C. §§401 & 402; H.R. 4445.) It “represent[s] the first major amendment of the Federal Arbitration Act,” and “voids predispute arbitration clauses in cases...involving sexual harassment allegations.” (Murrey v. Superior Ct. (2023) 87 Cal.App.5th 1223, 1230.)

The Act provides that “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute,...no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. §§401(a).) Therefore, when considering if this action invokes the EFAA, this Court must determine if Plaintiff has “alleg[ed] conduct constituting a sexual harassment dispute.” (9 U.S.C. 402(a).) As relevant here, the Act defines “sexual harassment dispute” as “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C. § 401(4).)

i. The Allegations Support a Plausible Claim for Sexual Harassment

It is critical to look to the allegations in Plaintiff’s complaint. “It is an elementary principle of modern pleading that the nature and character of a pleading is to be determined from its allegations, regardless of what it may be called, and that the subject matter of an action and issues involved are determined from the facts alleged rather than from the title of the pleadings....” (Jaffe v. Carroll (1973) 35 Cal.App.3d 53, 57, quoting from McDonald v. Filice (1967) 252 Cal.App.2d 613, 622; Ameron Internat. Corp. v. Insurance Co. of State of Pennsylvania (2010) 50 Cal.4th 1370, 1386 [in construing a complaint, courts must “emphasiz[e] substance over form”].)

Plaintiff alleges, “On or around April 27, 2023, during Doe’s first week of employment, Pinckney approached Doe at her desk, knelt beside her, and placed his head on her shoulder and chest without her consent.” (Compl. ¶14(b).) “On or around May 30, 2023, during a work-related one-on-one meeting at Starbucks, Pinckney engaged in another act of unwelcome physical contact. After allowing Doe to pay for her coffee, Pinckney kicked her in the shin and stated that she was supposed to let him pay for it. The kick left a tender spot on Doe’s shin for several days. Shook by Pinckney’s conduct, Doe documented the incident and avoided off-site meetings with him when possible.” (Compl. ¶14(e).) “On June 8, 2023, while she was carrying donor materials to present to leadership, Pinckney pressed his body against hers, pinning her in a narrow space and forcing her to brace herself to avoid dropping a glass frame. The contact was deliberate and intrusive. It left her startled, uncomfortable, and acutely aware that her supervisor felt entitled to invade her personal space without warning or consent.” (Compl. ¶14(g).) “In or around October 2023, after enduring months of misconduct, Doe made a good faith complaint to Polytech’s Human Resources leadership, including Assistant Director of Human Resources (“HR”) Candace Veasey (“Veasey”) and Director of Human Resources Sean Dwyer (“Dwyer”). On October 2, 2023, Doe submitted a formal HR report detailing Pinckney’s unwanted touching, boundary violations, sex-and-gender based disparagement, and unprofessional conduct and was told an investigation would be completed by January 2024. As of January 31, 2024, despite HR’s indication, no written investigative report had been provided.” (Compl. ¶14(l).)

Here, these allegations sufficiently state a plausible claim for sexual harassment. “[A] hostile work environment exists when harassing conduct ‘sufficiently offends, humiliates, distresses, or intrudes upon its victim,’ such that it disrupts emotional tranquility or interferes with the victim’s sense of well-being or ability to perform his or her job.” (Declodt v. Radnet Management, Inc. (2026) 121 Cal.App.5th 732, 745.) Here, “Plaintiff plausibly pleads a hostile work environment claim by alleging Defendants’ gendered conduct interfered with her ability to fulfill her role.” (Ding v. Structure Therapeutics, Inc. (N.D. Cal. 2024) 755 F.Supp.3d 1200, 1214.) The EFAA therefore applies to this action.

ii. The 2024 Agreement is a Predispute Arbitration Agreement

The EFAA states:

Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.

(9 U.S. Code § 402, subd. (a), emphasis added.)

Defendants argue that, because Plaintiff signed the Agreement in June 2024, the Agreement is not a predispute arbitration agreement as it was signed after the alleged harassment took place.

Kader v. Southern California Medical Center, Inc. (2024) 99 Cal.App.5th 214 (Kader) is binding authority on this issue. The Kader court held that, “the date that a dispute has arisen for purposes of the Act is a fact-specific inquiry in each case, but a dispute does not arise solely from the alleged sexual conduct. A dispute arises when one party asserts a right, claim, or demand, and the other side expresses disagreement or takes an adversarial posture. [Citation.] In other words, “[a] dispute cannot arise until both sides have expressed their disagreement, either through words or actions.” [Citation.] Until there is a conflict or disagreement, there is nothing to resolve in litigation.” (Id. at p. 222–223.) Moreover, a dispute is unlike a claim because in addition to the Plaintiff suffering an injury, a plaintiff also “requires a disagreement or controversy.” (Id. at p. 223.)

Here, no evidence indicates that Defendants expressed a disagreement or an adversarial posture. Defendants’ best argument to support the existence of a dispute is the allegations that Plaintiff complained about this harassment, which was then met with retaliation. (Compl. ¶14-16.) However, these allegations do not support the conclusion that Defendants disagreed with Plaintiff’s complaint before the signing of the 2024 Agreement. Instead, “around February 2025, Polytech communicated the results of its investigation for the first time, confirming that Pinckney had engaged in inappropriate conduct, including demeaning language toward women and inappropriate physical contact.” (Compl. ¶16.) There appears no disagreement or controversy arising before June 2024 to indicate a dispute between the parties.

Further, Defendants rely on the allegations of the complaint without submitting any evidence. However, “in deciding a motion to compel arbitration, ‘the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.’” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 800, review denied (Dec. 31, 2024), cert. denied (2025) 146 S.Ct. 107.) In Kader, the court determined that in the absence of evidence that the defendant disagreed with any claim asserted by the plaintiff, there was no dispute. (Kader, supra, 99 Cal.App.5th at p. 224.) Similarly, Defendants submit no evidence or declarations to indicate a dispute was present before the signing of the 2024 Agreement. Therefore, the Agreement is a predispute arbitration agreement expressly invalidated by the EFAA because it was executed before any dispute arose.

In reply, Defendants cite Federal authority on the issue. Most persuasive is Combs v. Netflix, Inc. (Combs) which held a dispute “requires ‘some aspect of opposition or disagreement’ between the parties. [Citation] And in the particular context of an employer-employee relationship, such a ‘dispute’ arises ‘when an employee registers disagreement—through either an internal complaint, external complaint, or otherwise—with his or her employer, and the employer expressly or constructively opposes that position.’” (Combs v. Netflix, Inc (9th Cir. 2026) 180 F.4th 1201, 1206.) Combs concluded:

Considering these allegations as a whole, a “dispute” between Combs and Netflix easily arose by December 2021 at the latest. When Combs repeatedly complained to Netflix about the sexualized company culture and the inappropriate actions of her co-workers, and when Netflix then allegedly failed to take any corrective action, there was plainly “some aspect of opposition or disagreement” between the parties. Cornelius, 133 F.4th at 246. Netflix’s alleged inaction shows that the company, at minimum, “constructively oppose[d]” Combs’s position. Id. at 247–48. When an employee complains to her employer about the actions of co-employees, a dispute arises once the employer responds negatively, or constructively so, to the employee’s complaints. And certainly, a dispute had arisen by December 2021, given that Netflix allegedly opposed Combs’s complaints to such an extent that it fired her for raising those complaints.

(Combs v. Netflix, Inc., supra, 180 F.4th at p. 1207.)

Defendants argue that Combs creates a presumption that an employer's failure to respond to a complaint mixed with allegations of retaliation demonstrates an opposition to the employee's complaint sufficient to be considered a "dispute." However, reliance on this argument is misplaced. Even if such an assumption was supported by Kader, which it may not be, the allegations suggest Defendants supported Plaintiff's allegations before the signing of the 2024 Agreement. Defendants engaged in behavior, such as reassigning Plaintiff to a different supervisor, that indicated an alignment with Plaintiff's complaint rather than an opposition. Additionally, Plaintiff's allegations of retaliation occur only after the signing of the 2024 Agreement. (See e.g. Compl. ¶15.) Therefore, any such presumption created by Combs, should it be applicable, is inapplicable to this instant action as Defendants did not fail to respond to Plaintiff's allegations of harassment nor engage in retaliatory conduct before the 2024 Agreement was signed.

In the end, the EFAA applies to this instant action as Plaintiff has plead a plausible sexual harassment claim. As the 2024 Agreement is a predispute arbitration agreement, the 2024 Agreement is therefore invalid and unenforceable under the EFAA.

Accordingly, Defendants' Motion to Compel Arbitration is DENIED.

IT IS SO ORDERED.

Dated: September 23, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.